



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 30561 of 2025

Uma Shankar

.....Petitioner(s)

Versus

State Of U.P. And 4 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Ashok Kumar Singh, Vidyanand Singh
Counsel for Respondent(s)	:	C.S.C.

Court No. - 3

HON'BLE SHEKHAR B. SARAF, J.
HON'BLE PRAVEEN KUMAR GIRI, J.

Heard learned counsel appearing on behalf of the petitioner and Sri Narendra Kumar Tiwari, learned counsel appearing on behalf of respondent nos.4 and 5.

Learned counsel appearing on behalf of the respondents is directed to take instructions in the matter.

List this matter on September 18, 2025, as fresh.

Registry is directed to print the name of Sri Narendra Kumar Tiwari, learned counsel appearing on behalf of the respondent nos.4 and 5 in the future cause list.

September 11, 2025
Dev

(Praveen Kumar Giri,J.) (Shekhar B. Saraf,J.)



2025:AHC:191402-DB

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Counsel for Petitioner(s)	:	Ashok Kumar Singh, Vidyanand Singh
Counsel for Respondent(s)	:	Narendra Kumar Tiwari, C.S.C.

Court No. - 3

HON'BLE SAUMITRA DAYAL SINGH, J.
HON'BLE INDRAJEET SHUKLA, J.

1. Having heard Sri Rambhavan Singh, Advocate holding brief of Sri Ashok Kumar Singh, learned counsel for the petitioner, learned Standing Counsel for the State and Sri Rakesh Kumar Mishra, learned counsel for Distribution Corporation.
2. Challenge has been raised to the Recovery Citation dated 26.06.2025 seeking to recover Rs. 7,26,244/- from the petitioner towards electricity dues.
3. On the strength of written instructions received by learned counsel for the Distribution Corporation a copy of which marked as 'X', has been retained on record. It has been thus disclosed that not only the provisional assessment but also final assessment has been made in the case of the petitioner on 11.11.2024 demanding Rs.7,26,244.
4. At the same time, on the strength of pleadings made and instructions obtained by learned counsel for Distribution Corporation, it appears that the entire proceedings of assessment have been conducted and concluded ex-parte against the petitioner.
5. In view of such facts, no useful purpose may be served in keeping such a petition pending or calling for counter affidavit at this stage. To the extent petitioner may not have been given opportunity of hearing, it is desirable that one opportunity is given to the petitioner before the Assessing Officer/respondent No. 3 under Clause 6.8 of the U.P. Electricity Supply Code 2005.

6. Accordingly, writ petition is **disposed of** with a direction, subject to the petitioner depositing Rs. 1,75,000/- towards the disputed demand within a period of one month, he may file appropriate application before respondent No. 3 within a further period of one week therefrom. Subject to such compliance, respondent No. 3 may proceed to deal with and decide petitioner's objection by a reasoned and speaking order, strictly in accordance with law, after confronting the petitioner with all adverse material being relied against the petitioner and by giving opportunity of personal hearing as expeditiously as possible, preferably within a period of two months from the date of application being filed by the petitioner.

7. In the event of non-compliance of any part of the order, the recovery shall revive from that stage.

October 30, 2025

Mohit

(Indrajeet Shukla,J.) (Saumitra Dayal Singh,J.)